

2021 P L C 87

[Lahore High Court]

Before Jawad Hassan, J

ABDUL QADEER

Versus

PUNJAB LABOUR APPELLATE TRIBUNAL and others

Writ Petition No.85122 of 2017, heard on 3rd November, 2020.

(a) Industrial dispute---

---Production of fake documents to secure appointment---Scope---Petitioner was appointed as Upper Division Clerk under Employees Son's Quota but his appointment was withheld on the ground of production of fake medical certificate---Labour Court as well as Labour Appellate Tribunal decided the issue against the petitioner---Contention of petitioner was that he never made any statement before the respondent/company admitting production of fake medical certificate whereas the same was used against him as evidence before the Labour Court---Held; petitioner had not raised any objection when it was tendered in evidence by the company---Petitioner was declared unfit for the appointment by the Medical Superintendent and later on he had managed to procure medical certificate and presented it for securing his appointment which subsequently was proved as fake upon verification by the company---Regular inquiry against the petitioner was not necessary as he himself admitted his guilt through a statement which was proved during evidence before the fora below---Constitutional petition was dismissed.

Bashir Ahmad v. Mumtaz Khan PLD 1965 Lah. 126; Gujrat Electricity Board v. Atmaram Sungomal Poshani 1990 MLD 957; Pakistan Engineering Consultants through Managing Partner v. Pakistan International Airlines Corporation through Managing Director and another PLD 2006 Kar. 511; Syed Yaqoob Shah v. XEN, PESCO (WAPDA), Peshawar PLD 2002 SC 667; Samiullah Khan Marwat v. Government of Pakistan 2003 PLC (C.S.) 317; Muhammad SIDDIQ Javaid Chaudhry v. Government of West Pakistan PLD 1974 SC 393; Khuda-I-Nazar v. Curator 2000 SCMR 1743; Muhammad Farooq v. Ministry of Defence through Secretary Defence Rawalpindi Cantt. 2015 PLC (C.S.) 1018; Abdul Jabbar v. Secretary, Health Department, Government of Balochistan 2015 PLC (C.S.) 953 and Muhammad Rafi v. Federation of Pakistan 2016 SCMR 2146 distinguished.

Federation of Pakistan through Secretary, Ministry of Law and Justice Division, Islamabad v. Mamoon Ahmed Malik 2020 SCMR 1154 rel.

(b) Industrial dispute---

---Verification of documents by employer---Scope---Employer has the prerogative to get verified any documents/certificates of a person employed at any stage of service for satisfaction even though it was not mentioned in the letter of appointment.

Salman Riaz Chaudhry for Petitioner.

Khalid Jameel for Respondents.

Date of hearing: 3rd November, 2020.

JUDGMENT

JAWAD HASSAN, J.---Through the instant Constitutional petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has prayed for setting aside the judgment dated 22.05.2017 passed by the Respondent No.1/Punjab Labour Appellate Tribunal, Lahore ("PLAT") whereby the appeal filed by the Petitioner against the judgment of the Respondent No.2/Presiding Officer, Punjab Labour Court No.1 Lahore dated 17.03.2017 was dismissed.

2. The facts tersely revealed from the petition are that the Petitioner was appointed as Upper Division Clerk ("UDC") under Employees Son's Quota vide order dated 10.08.2010. He produced medical fitness certificate on 18.08.2011 and started to perform his duties. All of sudden, his appointment was withheld on the ground of production of fake medical certificate. He moved application before the Chief Executive Officer LESCO, Lahore on 26.03.2013 and upon no response, he filed W.P. No.17987 of 2013 for seeking directions to decide above said application. He was personally heard by the Respondents on 30.08.2013 as result whereof order dated 02.09.2013 was passed whereby his appointment was cancelled ab-initio due to providing fake medical certificate. He filed grievance petition before the Respondent No.2 which was dismissed and appeal filed thereagainst was also met with the same fate vide impugned orders. Hence this petition.

3. Pre-admission notice was issued to the Respondents vide order dated 10.10.2017 and in pursuance of which the Respondents Nos.3 and 4 put appearance through their counsel.

4. Learned counsel for the Petitioner inter alia contended that the impugned judgments are against the law and facts as the same has been passed without taking into consideration the available record; that the impugned judgments are the result of mis-reading and non-reading of evidence; that no charge sheet, show cause notice or regular inquiry was conducted before cancelation of appointment letter; that the Respondents obtained the signatures of the Petitioner on blank papers and later on recorded the statement on the basis of which his appointment was firstly withheld and later on cancelled; that the appointment letter cannot be withdrawn or cancelled once it is implemented and as such the same are liable to be set aside. In support of his contentions learned counsel placed reliance on the case law reported in "Bashir Ahmad v. Mumtaz Khan" (PLD 1965 (W.P) Lahore 126), "Gujrat Electricity Board v. Atmaram Sungomal Poshani" (1990 MLD 957), "Pakistan Engineering Consultants through Managing Partner v. Pakistan International Airlines

Corporation through Managing Director and another" (PLD 2006 Karachi 511), "Syed Yaqoob Shah v. XEN, PESCO (WAPDA), Peshawar" (PLD 2002 SC 667), "Samiullah Khan Marwat v. Government of Pakistan" (2003 PLC (C.S.) 317), "Muhammad SIDDIQ Javaid Chaudhry v. Government of West Pakistan" (PLD 1974 SC 393), "Khuda-I-Nazar v. Curator" (2000 SCMR 1743), "Muhammad Farooq v. Ministry of Defence through Secretary Defence Rawalpindi Cantt." (2015 PLC (C.S.) 1018), "Abdul Jabbar v. SECRETARY, Health Department, Government of Balochistan" (2015 PLC (C.S.) 953) and "Muhammad Rafi v. Federation of Pakistan" (2016 SCMR 2146).

5. Learned counsel for the Respondents Nos.3 and 4 vehemently contested the arguments advanced by the learned counsel for the Petitioner and contended that the impugned judgments have been passed strictly in accordance with law and line with the verdict of the apex Court. He further stated that the Petitioner was not entitled to appointment as he produced fake medical certificate in order to procure his appointment which he admitted through his statement given on 10.09.2011 before the Respondents during personal hearing.

6. I have heard the arguments of the learned counsel for the parties and have gone through the record.

7. The fact of appointment of the Petitioner as UDC is not disputed by all hands. Record reveals that the Petitioner was appointed by the Respondents vide appointment letter dated 10.08.2010 and as per Clause 5, he has to produce a certificate of medical fitness from the D.G. M.S. Wapda Lahore. He produced medical fitness certificate dated 18.07.2011 and started his job however, his date of joining was extended upto 20.07.2011 by the Respondents. On 26.09.2011, his services were withheld by the Respondents till further orders which prompted him to file an application before the Respondents and upon no response, he approached to this Court through W.P. No.17897 of 2013 and sought directions for decision of his application. Pursuant to aforesaid directions, the Respondents heard him and issued office order dated 02.09.2013 which he challenged before the Respondent No.2 who dismissed the grievance petition and appeal filed thereagainst was also dismissed by the Respondent No.1.

8. The sole ground agitated by the Petitioner is that he never made any statement dated 10.09.2011 whereas the same has been used against the Petitioner during evidence before the Respondent No.2. This ground was dealt with by PLAT in its judgment, relevant portion of the same is as follows:

"The appellant on 10.09.2011 after making his statement not only signed it but also put his thumb impression to further strengthen his statement. Thereafter, appellant cannot resile from his earlier statement. The appellant also alleged at one place that his signatures and thumb impressions were obtained on a blank paper which was later on reduced in writing without knowledge or consent of the appellant. At the same time the appellant raised inconsistent plea that the alleged statement dated 10.09.2011 does not bear the appellant's signature. This tribunal observed that the signatures on the statement of appellant dated 10.09.2011 and signatures of appellant on his application dated 20.06.2013 addressed to Chief Executive Officer, LESCO, Lahore

are same which highlights that the appellant is not only confused but has made a inconsistent pleas to defend the fake medical certificate".

9. It evinces from the record that the Petitioner moved an application on 27.10.2014 for de-exhibiting his statement (Exh.R-4) recorded before the Authority concerned. Suffice it to say that firstly, the Petitioner never raised any objection when it was tendered in evidence by the Respondents on 23.09.2014 and secondly, the said statement was recorded by him on 10.09.2011 which has never been challenged by him to get it declared in his favour from any competent court of law. Hence this ground carries no weight.

10. Moreover, record also reveals that the Petitioner was earlier examined by the M.S. Wapda Hospital Complex, Lahore pursuant to his appointment letter dated 10.08.2010 and Secretary Medical Board vide letter dated 04.08.2011 wrote as follows:

"Ref: Your office appointment letter No.43095- 98 dated 10.08.2010 and this office letter No. Hosp/SMB/305983/ 8/3670-71 dated 17.08.2010.

Mr. Abdul Qadeer son of Mr. Nazir Ahmad, appointed as UDC (on contract basis) has been re-examined at Wapda Hospital Complex, Lahore and is found to have HBV DNA by PCR reactive, as per directions of Director General (Medical Services) WAPDA, Office order No.DGMS/DMS / MOG/30311/1957-97 dated 22.05.2002 and subsequent Office Order No.DGMS/DMS/MOG30311/ 521-58 dated 10.02.2007, he does not fall in medical category "AYE" therefore, medical fitness certificate cannot be issued. At present he is unfit for induction into service".

11. The Respondents thereafter verified the medical fitness certificate produced by the Petitioner on 18.07.2011 from the M.S. Superintendent, Wapda Hospital Complex, Lahore vide letter dated 13.08.2011 which was replied vide letter dated 22.08.2011 with the following words:

"The first entry medical fitness certificate of Mr. Abdul Qadeer son of Mr. Nazir Ahmad, UDC, forwarded by your office vide above referred letter has not been issued from Wapda Hospital Complex, Lahore and as such the document is fake. The medical fitness status of the said candidate that he is not fit in medical category AYE had already been communicated to your office vide this office letter No.Hosp/SMB/30593/8/2923-24 dated 04.08.2011".

12. From the reading of above said letters, it is noticeable that the Petitioner was declared unfit for the appointment by the M.S. Wapda Hospital Complex Lahore and later on he managed to procure medical certificate dated 18.07.2011 and presented it for securing his appointment which subsequently was proved as fake upon verification by the Respondents vide above referred letters. Hence his appointment was rightly cancelled by the department after inquiry and upon his admission of guilt made through statement made on 10.09.2011. Even otherwise, the employer has the prerogative to get verified any documents/certificates of a person employed at any stage of service for satisfaction even though it was not mentioned in the letter of appointment.

13. A ground was strongly urged by learned counsel for the Petitioner that before cancelling the appointment, the Respondents have neither issued show cause notice nor charge sheeted or even no regular inquiry was conducted. To answer this ground, it is settled law that regular inquiry was conducted where the matter with regard to disputed questions is involved. In the case in hand, the Petitioner himself admitted his guilt of procuring the fake medicate fitness certificate through his statement dated 10.09.2011 (Exh.R-4) which was proved during evidence before the fora below. Since this fact was admitted by all hands therefore, there was no need of conducting regular inquiry as held by the Hon'ble Supreme Court of Pakistan in "Federation of Pakistan through Secretary, Ministry of Law and Justice Division, Islamabad v. Mamoon Ahmed Malik" (2020 SCMR 1154) with the following observation:

"Regular enquiry was only held when there were disputed facts. In the present case the fact that the respondent remained absent from duty from 5.9.2011 to 2.4.2012, was not disputed rather an admitted fact; it was also admitted fact that the respondent was a probationer. Since there was no dispute about the fact of respondent remaining absent from duty, no question arose for holding of a regular enquiry".

14. Moreover, the judgments referred by the learned counsel for the Petitioner cannot be relied upon being distinguishable from the facts and circumstances of the case as each and every case has its own merits.

15. From the above facts and case law, it is clear that the Respondents Nos.1 and 2 have passed the detail judgments after examining all the record. Therefore, I see no merit in the instant petition and the same is hereby dismissed.

SA/A-76/L

Petition dismissed.